

[REPUBLIC ACT NO. 3661, June 22, 1963]

AN ACT TO ESTABLISH THE PHILIPPINE SCIENCE HIGH SCHOOL

[Status note: This Act was repealed by Republic Act No. 12310 (Expanded Philippine Science High School System Act, 2025), Section 24. It is included for historical reference only.]

Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

SECTION 1. There is hereby established a high school to be known as the "Philippine Science High School."

SEC. 2. The purpose of the said high school shall be to offer on a free scholarship basis a secondary course with special emphasis on subjects pertaining to the sciences with the end in view of preparing its students for a science career.

SEC. 3. The head of this high school shall be known as the Director of the Philippine Science High School. He shall be appointed by the Chairman subject to the approval and his compensation shall be fixed by, the Board of Trustees. He shall not be removed therefrom except for the cause. His functions, powers and duties, in addition to those specifically provided for in this Act, shall be those usually pertaining to the office of the principal of a public high school.

SEC. 4. The Philippine Science High School shall have the general powers set out in Section thirteen of Act Numbered Fourteen hundred and fifty-nine, as amended, and the exercise of its corporate powers is hereby vested exclusively in the Board of Trustees and in the Director of the High School insofar as authorized by said Board. The Board of Trustees shall be composed of the Chairman of the National Science Development Board, who shall be ex officio Chairman of the Board, the Secretary of Education, who shall be ex officio Vice-Chairman, and the following members; the President of the University of the Philippines, the Chairman of the UNESCO National Commission of the Philippines, the President of the Science Foundation of the Philippines, the Director of the Philippine Science High School, all as ex officio members representative from the American-Philippine Science Foundation, Inc., to be designated by its President, two representatives from scientific and technological associations or societies, one member representing industry and one member representing agriculture. All the members who are not receiving regular compensation from the government shall receive a per diem of fifty pesos each per session of the Board.

The members of the Board representing scientific and technological associations or societies, industry, and agriculture shall be appointed by the President of the Philippines upon recommendation of the Chairman of the Board of Trustees. Two of them shall serve for six years, one for four years, and one for two years.

The Vice-Chairman of the National Science Development Board and the Undersecretary of Education shall, in the absence of the heads of their respective agencies, act as ex officio Chairman and ex officio Vice-Chairman of the Board of Trustees, respectively.

SEC. 5. The Board of Trustees shall exercise for the Philippine Science High School all the powers and prerogatives of a board of directors of a private corporation. It shall also have the

following powers and duties:

- (a) To fix the site of the Science High School;
- (b) To receive and appropriate to the ends specified by law such sums as may be provided by law for the support of the High School;
- (c) To approve appointments made and contracts entered into by the Director in connection with the employment of professors, instructors, lecturers, and other employees of the school, subject to the provisions of Section eleven of this Act; to fix their compensation and other conditions of employment; and to remove them for cause after an investigation and hearing shall have been had;
- (d) To approve the curricula, course of study, and rules of discipline drawn up by the Executive Council as herein-after provided;
- (e) To provide fellowship for faculty members and approve the grant of scholarships, stipends and such other allowances to deserving students;
- (f) To approve the issuance of certificates or diplomas to successful candidates for graduation;
- (g) To provide its own rules of procedure, and to prescribe for the administration of the High School such general rules and regulations, not contrary to law, as are consistent with the purpose of the High School, as defined in Section two of this Act;
- (h) To receive in trust legacies, gifts, and donations of real and personal property of all kinds and to administer the same in accordance with the directions and instructions of the donor, and, in default thereof, in such manner as the Board of Trustees may in its discretion determine, for the benefit of the High School or for aid to any of its students; and
- (i) To establish the criteria for the selection and admission of students which shall include, among others, national competitive examinations.

SEC. 6. A quorum of the Board of Trustees shall consist of a majority of all the members holding office at the time the meeting of the Board is called. All processes against the Board of Trustees shall be served on the Director or secretary thereof.

SEC. 7. On or before the fifteenth of June of each year, the Board of Trustees shall file with the President and Congress of the Philippines a detailed report, setting forth the progress, condition, and needs of the High School.

SEC. 8. There shall be an Executive Council consisting of the Director, the heads of departments, and such other ranking faculty members or officials of the High School as may be determined by the Director. The Council shall have power to screen and select the students to be admitted to the High School; to select students who shall be recipients of scholarships, stipends and other allowances; and to develop the curricula, course of study, and rules of discipline, all subject to the approval of the Board. The Council shall have the exclusive power to recommend students eligible for graduation. Through the Director it shall have disciplinary power over the students. The Council shall implement and execute the policies laid down by the Board of Trustees and exercise such other functions, powers and duties as the Board may prescribe.

SEC. 9. There shall be a registrar of the High School who shall also act as Secretary of the Board, to be appointed by the Director with the approval of the Board of Trustees. He shall keep

such records as may be prescribed by the Board.

SEC. 10. There shall be a treasurer of the Philippine Science High School who shall be appointed by the Director with the approval of the Board of Trustee. All accounts and expenses shall be audited by the Auditor General or his duly authorized representative.

SEC. 11. Professors, instructors and other faculty members of the High School shall be exempt as such from any civil service examination or regulations as a requisite to appointment. They shall be selected in accordance with such criteria as may be established by the Board of Trustees which shall include, if necessary and practicable, screening and competitive examination. Said professors, instructors and faculty members, as well as the school's administrative staff, shall be exempt from the provisions of laws, rules and regulations on wage and position classification.

SEC. 12. All legacies, gifts and donations for the benefit of the High School or for its support and maintenance or for aid to any of its students shall be tax-exempt and shall be an allowable deduction from the gross income of donors. For the purpose of the income tax, the High School shall be exempt from the payment of all taxes, fees, assessments and other charges of the Government, its branches and subdivisions.

SEC. 13. All incomes and donations to the High School created under this Act shall constitute a special fund to be known as a Science High School Fund. This fund shall be expended by the Board of Trustees exclusively for the purpose of this Act.

SEC. 14. Heads of bureaus or offices of the National Government are hereby authorized to loan or transfer, upon request of the Director of the High School, such apparatus, supplies and other properties as may be needed by the High School, and to detail employees for duty therein, when in the judgment of the head of the bureau or office, they can be spared without serious detriment to the public service. Employees so detailed shall perform such duties as are required under such detail, and the time employed shall be counted as part of their regular official hours, all laws, rules or regulations limiting the detail of government employees notwithstanding.

Any officer, or employee of the Government engaged as lecturer in the High School, may receive a compensation in addition to his salary at the rate to be fixed by the Board: Provided, That his duties as such lecturer are performed outside of the regular office hours.

SEC. 15. To carry out the purpose of this Act, including the operation of the High School, the acquisition, improvement, and conditioning of the land on which the High School shall be located, the construction, maintenance, and repair of buildings and improvements, and the acquisition of furniture, fixtures and equipment, the sum of nine million seven hundred forty thousand pesos is hereby appropriated out of any funds in the National Treasury not otherwise appropriated. Said sum shall be released for expenditure in amounts on the date hereinbelow set forth:

Upon approval of this Act, for the purposes above-mentioned: P4,700,000.00

On July 1, 1963: P300,000.00

On July 1, 1964: P350,000.00

On July 1, 1965: P470,000.00

On July 1, 1966: P560,000.00

On July 1, 1967: P560,000.00

On July 1, 1968: P560,000.00

On July 1, 1969: P560,000.00

On July 1, 1970: P560,000.00

On July 1, 1971: P560,000.00

On July 1, 1972: P560,000.00

Total: P9,740,000.00

Thereafter, the expenses of the High School, for the purposes above-described, shall be provided in the yearly General Appropriation Acts of the National Government: Provided, however, That any unexpended balance for any shall also form part of the aforementioned Science High School Fund.

SEC. 16. If any provision of this Act or the application of such provision to any person or circumstance is held invalid, the remainder of this Act or the application of such provision to other persons or circumstances shall not be affected thereby.

SEC. 17. All laws, rules and orders inconsistent with the provisions of this Act are hereby repealed.

SEC. 18. This Act shall take effect upon its approval.

Approved, June 22, 1963.